

HOUSE No. 244

The Commonwealth of Massachusetts

PRESENTED BY:

Jessica Ann Giannino and Sean Garballey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the family medical history of adopted children.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>1/15/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/15/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>2/4/2025</i>

HOUSE No. 244

By Representatives Giannino of Revere and Garballey of Arlington, a petition (accompanied by bill, House, No. 244) of Jessica Ann Giannino, Sean Garballey and Paul J. Donato relative to the family medical history of adopted children. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the family medical history of adopted children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 210 of the General Laws is hereby amended by inserting after
2 section 2 the following section:-

3 Section 21/2. (a) For the purposes of this section “placement agency” shall mean a
4 department, agency or institution of the commonwealth, or any political subdivision thereof, or
5 any organization incorporated under chapter 180, 1 of whose principal purposes is providing
6 custodial care and social services to children, which receives by agreement with a parent or
7 guardian, by contract with a state agency or as a result of referral by a court of competent
8 jurisdiction, any child under the age of 18 years of age for placement in adoption.

9 (b) Any placement agency that receives written consent for adoption required by section
10 2 from a biological parent shall provide the biological parent with an anonymous family medical
11 history form and encourage the biological parent to complete the form to the best of their
12 knowledge. The anonymous family medical history form shall include, but not be limited to: (i)

any known genetic predispositions and health conditions of the parent and (ii) any known genetic predispositions and health conditions of the parent's relatives within 2 degrees of consanguinity. No placement agency shall require the completion of the form as a condition of acceptance of written consent for adoption required by the section 2.(c) Upon the adoption of any child whose biological parent completed an anonymous family medical history form, the placement agency shall provide the form to the child's adoptive parent. Any information about the biological parents included in the anonymous family medical history form shall not identify or tend to lead to the identification of the biological parents or their present or former locations. No prospective adoptive parent shall have access to the anonymous medical history form completed by a child's biological parent prior to the child's adoption.

SECTION 2. This act shall be known as "Patricia and Francesca's Law".